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An open letter to Leaders: three key asks for nature and climate

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This is an open letter directed to leaders of the National, Labour, Greens, NZ First, ACT, Te Pati Māori and Opportunity parties. It is based on the Environmental Defence Society's deep research and submissions over the past 3 years.

EDS is asking every party to make three commitments: repair environmental law; put nature first on conservation land; and set out a credible plan for cutting emissions. These commitments should be written into coalition agreements and funded in the first term.

Start with the laws that shape everyday decisions. If they are not simply repealed, the new Planning and Natural Environment Acts need immediate, targeted fixes. Their environmental limits must operate as effective bottom lines for freshwater, indigenous biodiversity and the coast. Councils must be able to protect outstanding landscapes, urban trees and remnants of native habitat before they disappear.

The new regulatory relief provisions need to go. Making cash-strapped councils compensate landowners for reasonable public-interest protections will strongly discourage them from protecting nature. The whole approach will lead to bureaucratic churn and rampant litigation.

Meaningful public participation, access to the Environment Court and independent scrutiny need to be restored. We get better environmental decisions when local communities, iwi and people with knowledge of the affected area can engage meaningfully.

The Fast-track Approvals Act should be narrowed to essential public good infrastructure. Housing developments belong in the planning system, where their location, transport links and costs to councils can be assessed alongside other growth choices. Fast-track is especially ill-suited to out-of-sequence greenfield subdivisions.

For the infrastructure that remains eligible in fast-track, expert panels need adequate time and genuine independence. Section 85 of the Act should be amended to require a rigorous assessment of environmental harm. Its current test, which allows serious adverse impacts to be weighed against a project's regional or national benefits, should be replaced with environmental bottom lines that every project must meet. Ministerial policy statements that can influence individual decisions should be removed and fair participation rights provided for local submitters.

If it's not immediately repealed, Parliament should give the Act a sunset clause: its special route should end when the first generation of plans, under new resource management laws, are in force across the country.

All those laws will work only if the institutions applying them can do their jobs. We need to complete the redesign of local government promptly. Councils need to be funded for monitoring, enforcement and catchment restoration. Support for public-interest environmental participation, including Environmental Legal Assistance should be reinstated. The government needs to invest in incentives that help landowners protect wetlands, native bush and waterways.

Put conservation back at the centre of conservation law. The Conservation Amendment Bill is still before Parliament. Its direction to enable economic use and development of public conservation land to the "greatest extent practicable" should be removed. Compatible tourism and other limited activities already occur on public conservation land; there is no need to turn economic development into an overriding statutory imperative for the Department of Conservation.

The Bill's proposed visitor amenity areas also need firm limits. They must not become places that allow intensive development in national parks or other protected places, bypassing ordinary conservation planning and public scrutiny. Any provision for disposing of conservation land should retain the demanding test we have at present. The Bill does contain useful ways to simplify planning: Parliament can keep those parts of the Bill without the others which weaken the Act's purpose.

DOC needs the resources to better manage the third of the country in its care. That means increased and sustained funding for pest and weed control, threatened species recovery, and managing visitor pressures, as well as for marine protection and advocacy beyond the conservation estate. Fisheries law needs to be reformed so catch decisions respect ecological

limits. Effective and modernised marine protection is needed and damaging practices on sensitive seabeds including trawling prevented or phased out. We need to review the clunky and outdated Quota Management System.

Make climate policy credible again. We should stay in the Paris Agreement, retain and strengthen the independent Climate Change Commission and take domestic emissions budgets seriously. The Emissions Trading Scheme needs to be reviewed so its price and unit supply drive real reductions in fossil fuel emissions, rather than allowing an expanding supply of forestry offsets to defer them. Forests matter, especially permanent native forests, but planting cannot substitute for gross emissions reductions. We also need a portfolio of complementary policies to sit alongside the ETS and encourage the right behaviour change.

Renewable generation needs to be deployed faster and smarter through effective consenting and grid connections, while steering projects away from places of high ecological and landscape value. We need investment in storage, efficiency and demand management so the electricity system can cope with dry years and rising demand. The costly LNG import terminal should be cancelled. Energy security deserves a rigorous assessment of all options, not a long-term commitment to imported fossil gas.

Agriculture requires more than a voluntary pledge to take up still-evolving technologies. A price should be put on agricultural methane through a dedicated mechanism separate from the ETS, with a clear start date and a declining emissions pathway consistent with New Zealand's targets. Farms that achieve verified reductions should be rewarded through rebates or exemptions, and the revenue used to help pay for technology and changes in farm practice. If technology succeeds at scale, farmers' bills will fall with their emissions. If it does not, the price signal remains.

Finally, adaptation cannot wait. We need a national framework for decisions about flood, coastal and landslide risk, including when protection is feasible, when relocation is necessary and how costs are shared. We need to stop adding homes and infrastructure in places already known to be unsafe. In Tairāwhiti, the emissions trading liabilities and planning impediments that can prevent erosion-prone forestry land from transitioning to permanent native cover need to be addressed with urgency before there's another disaster.

None of these asks requires choosing between prosperity and the environment. They require political parties to say plainly which protections they will uphold, what they will change and how they will pay for delivery. Voters deserve those answers before coalition negotiations begin. Our environment matters.

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